

April 10, 2026, Civil Law & Motion Tentative Rulings

**1. CU0002094 The Mortgage Law Firm, PLC v. All Claimants to Surplus Proceeds
After the Trustee's Sale of the Real Property at 25970 Table Meadow
Road, Auburn, CA**

Appearances required for hearing on claims to the undistributed surplus funds.

2. CL0003052 JPMorgan Chase Bank, N.A. vs. Amy S. Perdue

Defendant Perdue's January 12, 2026, motion to compel arbitration is granted.

Defendant asserts Plaintiff JP Morgan Chase Bank N.A. is bound by a binding and enforceable agreement to arbitrate its claims by means of the Cardmember Agreement. The Court agrees.

"The party seeking to compel arbitration has the initial burden to plead and prove the existence of a valid arbitration agreement that applies to the dispute. Once that burden is satisfied, the party opposing arbitration must prove any defense to the agreement's enforcement" *Dennison v. Rosland Cap. LLC* (2020) 47 Cal.App.5th 204, 209.

Defendant has shown that a valid arbitration agreement exists that applies to this dispute. Plaintiff previously indicated on February 25, 2026 that it was not opposing arbitration at that time and has filed no opposition to the same.

3. CL22-086219 American Express National Bank vs. Tania Blair

Plaintiff American Express National Bank's February 3, 2026, motion to vacate the conditional dismissal and for entry of judgment pursuant to Code of Civil Procedure section 664.6 is granted with modified costs.

Where the statutory requirements are met, the court, upon motion, may enter judgment pursuant to the terms of the settlement agreement after dismissal, pursuant to Code of Civil Procedure section 664.6. A party moving for entry of judgment pursuant to this provision need not establish a breach of the settlement agreement, as the court is authorized to enter judgment pursuant to the settlement regardless of whether the settlement's obligations were performed or excused. *Hines v. Lukes* (2008) 127 Cal.App.4th 1174, 1184-1185. When the settlement agreement and dismissal reserve for the trial court the authority to determine the prevailing party and to award costs and fees accordingly, the court has jurisdiction to award such costs and fees. *Khavarian Enterprises, Inc. v. Commline, Inc.* (2013) 216 Cal.App.4th 310, 320; 329 (rule applies to § 664.6 motions).

All statutory requirements of Code of Civil Procedure section 664.6 have been satisfied, as the parties entered into a valid and binding settlement agreement, and the court properly retained jurisdiction following dismissal to do so. Further, the stipulated written agreement expressly contemplates that upon Defendant's failure to comply with the terms of the settlement

agreement, Defendant agrees the court can enter judgment against Defendant in the amount of \$19,925.72 plus costs.

One caveat: Plaintiff requests costs of \$498.00. The Court financial records show an initial filing fee of \$370.00, a filing fee for the stipulation and order for \$20.00, and a filing fee for the instant motion of \$60.00. Plaintiff has not supplied adequate evidence by declaration or memorandum of costs otherwise. Costs are awarded in the amount of \$450.00.

4. CU0000090 Matthew Palleschi, et al. v. Daniel Fraiman Construction, Inc., et al.

On the Court's motion, the hearing for this discovery matter is continued to April 17, 2026, at 10:00 a.m.

The Court grants Plaintiff Palleschi's motion for an order deeming its Requests for Admission (Set Three) directed to Defendant Daniel Fraiman Construction, Inc. ("DFC, Inc.") as admitted, unless DFC serves substantially compliant responses before the scheduled hearing. The Court denies, as moot, Plaintiff's motion for an order directing Defendant DFC, Inc. to provide further responses to Plaintiff's Requests for Admission (Set Three) and related Plaintiff's Construction Form Interrogatory No. 326.1. The motion for monetary sanctions against DFI, Inc. and its counsel is granted.

Plaintiff argues the Court should order that the truth of all matters specified in Plaintiff's requests for admission, set three, be deemed admitted because Defendant DFC, Inc. failed to serve verified responses to Plaintiff's Requests for Admission, Set Three ("RFAs"). DFC, Inc. argues it served compliant, verified responses and that the motion to deem admitted is inappropriate as a matter of law. Plaintiff has the better argument.

"The party to whom the requests for admission are directed shall sign the response under oath, unless the response contains only objections."¹ Code Civ. Proc. § 2033.240(a). "If that party is a private corporation . . . *one of its officers or agents shall sign the response under oath on behalf of that party.*" Code Civ. Proc. § 2033.240(b) (italics supplied).

A "response to [an] RFA ...fail[s] to conform to the statutory prescription" if "it was not signed by a party and was not under oath." *Allen-Pacific, Ltd. v. Superior Court* (1997) 57 Cal.App.4th 1546, 1550–1551, *disapproved on other grounds by Wilcox v. Birtwhistle* (1999) 21 Cal.4th 973 "Unsworn [or unverified] responses are tantamount to no responses at all." *Allen Pacific, Ltd. v. Superior Court* (1997) 57 Cal.App.4th 1546, 1550-1551, *citing Appleton v. Superior Court* (1988) 206 Cal. App. 3d 632, 636 and *Zorro Inv. Co. v. Great Pacific Securities Corp.* (1977) 69 Cal.App.3d 907, 914.

A party may move for an order deeming the request for admissions admitted if the party to whom they are directed has failed to serve a timely response. Code Civ. Proc. § 2033.280(b). More specifically:

¹ The exception to this requirement, for responses with only objections, is not at issue.